

Basant Lama & Ors vs The State & Anr on 18 December, 2020

Author: Anu Malhotra

Bench: Anu Malhotra

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ Crl.M.C. No. 2485/2020

BASANT LAMA & ORS.

Through:

..... Peti
Mr.Ashish Dhingra, Advocate wi
petitioners in person.

versus

THE STATE & ANR.

Through:

.... Responde
Mr.Sanjeev Sabharwal, APP for
with second IO ASI Rakesh

CORAM:

HON'BLE MS. JUSTICE ANU MALHOTRA
ORDER

% 18.12.2020 (Through Video Conferencing) Crl.M.A. No.17604/2020 Exemption allowed, subject to just exceptions.

Vide the present petition, the petitioners No.1 to 6, seek the quashing of the FIR No.73/2019, Police Station Burari registered under Sections 498A/406/34 of the Indian Penal Code, 1860 submitting inter alia to the effect that a settlement has since been arrived at between the parties and the marriage between the petitioner No.1 and the respondent No.2 has also been dissolved vide a decree of divorce through mutual consent and all claims between the parties stand settled and that no useful purpose would be served by the continuation of the said FIR.

The Investigating Officer of the case is present and has Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:21.12.2020 12:52:22 This file is digitally signed by PS to HMJ ANU MALHOTRA.

identified the petitioners present in Court today through Video Conferencing as being the six accused arrayed in the to FIR No.73/2019, Police Station Burari registered under Sections 498A/406/34 of the Indian Penal Code, 1860 and the respondent No.2 present in the Court today through Video Conferencing as being the complainant thereof.

The respondent No.2 in her deposition on oath has testified to the effect that the marriage between her and the petitioner No.1 has been dissolved vide a decree of divorce through mutual consent under Section 13 B (2) of the Hindu Marriage Act, 1955 vide decree dated 10.2.2020 in HMA No.

190/2020 of the Court of the Judge Family Courts, Central District, Tis Hazari Courts and pursuant to the settlement arrived at at the Counselling Cell, Family Courts, Tis Hazari Courts during the course of the said proceedings a total settled sum of Rs.3,50,000/- had been agreed to be paid to her by the petitioners of which she had received a sum of Rs.2,00,000/- previously and the balance sum of Rs.1,50,000/- has been handed over to her today during the course of the present proceedings through video conferencing by the petitioner No.1 Basant Lama that petitioner No.1 being present with her vide a demand draft bearing No.162772 dated 28.9.2020, drawn on the State Bank of India in her favour. She further states that there are now no claims of hers left against the petitioners and that there is no child born of the wedlock between the petitioner No.1 and the herself and she does not oppose the prayer made by the petitioners seeking the quashing of the FIR in question nor does she want them to be punished in relation thereto in as much Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:21.12.2020 12:52:22 This file is digitally signed by PS to HMJ ANU MALHOTRA.

as she wants all litigations to stop.

On behalf of the State, there is no opposition to the prayer made by the petitioners seeking quashing of the FIR in question in view of the settlement arrived at between the parties and the deposition made by the respondent No.2.

In as much as the FIR has apparently emanated due to a matrimonial discord which has since been resolved between the petitioner No.1 and the respondent No.2 vide a decree of divorce through mutual consent under Section aforementioned, coupled with the factum that there is no reason to disbelieve the statement made by respondent no.2 duly identified by the Investigating Officer qua her having made her statement voluntarily of her own accord without any duress, pressure or coercion from any quarter in as much as she is well educated and having done her M.A. ,B.Ed. and taught earlier and preparing for government service and that she has understood the implications of the statement made by her, it is considered appropriate to put a quietus to the litigation between the parties qua the FIR in question and for the maintenance of peace and harmony between them in view of the observations in the verdict of the Hon'ble Supreme Court in Gian Singh vs. State of Punjab & Another, (2012) 10 SCC 303, to the effect : -

"58..... No doubt, crimes are acts which have harmful effect on the public and consist in wrongdoing that seriously endangers and threatens the well-being of the society and it is not safe to leave the crime-doer only because he and the victim have settled the dispute amicably or that the victim has been paid compensation, yet certain crimes have been made Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:21.12.2020 12:52:22 This file is digitally signed by PS to HMJ ANU MALHOTRA.

compoundable in law, with or without the permission of the court. In respect of serious offences like murder, rape, dacoity, etc., or other offences of mental depravity under IPC or offences of moral turpitude under special statutes, like the Prevention of Corruption Act or the offences committed by public servants while working in that

capacity, the settlement between the offender and the victim can have no legal sanction at all. However, certain offences which overwhelmingly and predominantly bear civil flavour having arisen out of civil, mercantile, commercial, financial, partnership or such like transactions or the offences arising out of matrimony, particularly relating to dowry, etc. or the family dispute, where the wrong is basically to the victim and the offender and the victim have settled all disputes between them amicably, irrespective of the fact that such offences have not been made compoundable, the High Court may within the framework of its inherent power, quash the criminal proceeding or criminal complaint or FIR if it is satisfied that on the face of such settlement, there is hardly any likelihood of the offender being convicted and by not quashing the criminal proceedings, justice shall be casualty and ends of justice shall be defeated. The above list is illustrative and not exhaustive. Each case will depend on its own facts and no hard-and-fast category can be prescribed." [Refer to B.S. Joshi, (2003) 4 SCC 675; Nikhil Merchant, (2008) 9 SCC 677 and Manoj Sharma, (2008) 16 SCC 1.]"

and in view of the verdict of the Hon'ble Supreme Court in Jitendra Raghuvanshi & Ors. Vs. Babita Raghuvanshi & Anr. (2013) 4 SCC 58, to the effect : -

"15. In our view, it is the duty of the courts to encourage genuine settlements of matrimonial disputes, particularly, when the same are on considerable increase. Even if the offences are non- Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:21.12.2020 12:52:22 This file is digitally signed by PS to HMJ ANU MALHOTRA.

compoundable, if they relate to matrimonial disputes and the Court is satisfied that the parties have settled the same amicably and without any pressure, we hold that for the purpose of securing ends of justice, Section 320 of the Code would not be a bar to the exercise of power of quashing of FIR, complaint or the subsequent criminal proceedings.

16. There has been an outburst of matrimonial disputes in recent times. They institution of marriage occupies an important place and it has an important role to play in the society. Therefore, every effort should be made in the interest of the individuals in order to enable them to settle down in life and live peacefully. If the parties ponder over their defaults and terminate their disputes amicably by mutual agreement instead of fighting it out in a court of law, in order to do complete justice in the matrimonial matters, the courts should be less hesitant in exercising their extraordinary jurisdiction. It is trite to state that the power under Section 482 should be exercised sparingly and with circumspection only when the Court is convinced, on the basis of material on record, that allowing the proceedings to continue would be an abuse of process of court or that the ends of justice require that the proceedings ought to be quashed...."

(emphasis supplied), FIR No.73/2019, Police Station Burari registered under Sections 498A/406/34 of the Indian Penal Code, 1860, and all consequential proceedings emanating therefrom against the petitioners are thus quashed.

The petition is disposed of.

ANU MALHOTRA, J DECEMBER 18, 2020/SV Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:21.12.2020 12:52:22 This file is digitally signed by PS to HMJ ANU MALHOTRA.

IN THE HIGH COURT OF DELHI AT NEW DELHI BASANT LAMA & ORS. V. THE STATE & ANR.

18.12.2020 CW-1 ASI RAKESH PS BURARI I am the second Investigating Officer in relation to FIR No.73/2019, Police Station Burari registered under Sections 498A/406/34 of the Indian Penal Code, 1860. I identify the petitioners No. 1 to 6 as being the six accused present today in Court through video conferencing arrayed in the FIR No.73/2019, Police Station Burari registered under Sections 498A/406/34 of the Indian Penal Code, 1860. I also identify the respondent no.2 present in the Court today through video conferencing as being the complainant of the FIR in question.

ANU MALHOTRA, J RO & AC 18.12.2020.

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IN THE HIGH COURT OF DELHI AT NEW DELHI BASANT LAMA & ORS. V. THE STATE & ANR.

18.12.2020 CW-2 MS TARA CHAUDHARY D/O RAJBIR SINGH AGED 30 YEARS R/O GALI NO.3, BENGALI COLONY, SANT NAGAR BURARI.

On S.A. I do not oppose the prayer made by the petitioners seeking quashing of the FIR No.73/2019, Police Station Burari registered under Sections 498A/406/34 of the Indian Penal Code, 1860 nor do I want the petitioners to be punished in relation thereto in view of the settlement arrived at between me and the petitioner No.1 at the counselling Cell of the Family Courts, Tis Hazari Courts, Delhi. Pursuant to the said settlement a total sum of Rs.3,50,000/- had been agreed to be paid to me by the petitioners of which I have received a sum of Rs.2,00,000/- previously and the balance sum of Rs.1,50,000/- has been handed over to me today during the course of the present proceedings through video conferencing by the petitioner No.1 Basant Lal vide a demand draft bearing No.162772 dated 28.9.2020, drawn on the State Bank of India in my favour which has been received by me. Thus there are now no claims of mine left against the petitioners. The marriage between me and the petitioner No.1 has also since been dissolved vide a decree of divorce through mutual consent under Section 13 B (2) of the Hindu Marriage Act, 1955 vide decree dated 10.02.2020 in HMA 190/2020 of the Court of the Judge Family Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:21.12.2020 12:52:22 This file is digitally signed by PS to HMJ ANU MALHOTRA.

Courts, Tis Hazari Courts, Delhi. There is no child born of the wedlock between me and the petitioner No.1. I have so stated voluntarily of my own accord without any duress, pressure or coercion from any quarter.

I have done M.A. B.Ed and used to teach earlier and now I am preparing for government service. I have understood the implications of making my statement which I have made voluntarily of my own accord without any duress, pressure or coercion from any quarter and I do not want to think again. I do not want legal assistance now in as much as I want to end the litigation.

ANU MALHOTRA, J RO & AC 18.12.2020 Signature Not Verified Digitally Signed By:SUMIT GHAI
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